

		There is no communication or action by the Plaintiffs or their Counsel that shows unambiguous acceptance of the settlement offer made by Defendants. Instead, the factfinder is left to interpret the words and conduct of the parties to determine whether the parties intended to enter into an agreement. From the evidence presented by the parties, a reasonable factfinder could determine that no agreement was entered into, but could also decide that an agreement was entered into. The court cannot grant a motion for summary judgment in such circumstances, and must deny Defendants' motion.
15	Hendrickson vs. The L3 Property Management 30-2025-01519722	<u>Demurrer</u> Cross-Defendants Stephanie Hendrickson's, Luke Mensink's, Josiah Hendrickson's, and River Hendrickson's Demurrer to Cross-Complaint is OVERRULED as to the 1st and 2nd Causes of Action and SUSTAINED with 15 days leave to amend as to the 3rd Cause of Action. If Cross-Complainants The L3 Property Management and Barry J. Reieux do not amend the Cross-Complainants' Cross-Complaint within the period of time stated above, Cross-Defendants Stephanie Hendrickson, Luke Mensink, Josiah Hendrickson, and River Hendrickson shall file an answer or other pleading in response to the remaining causes of action of the Cross-Complainants' Cross-Complaint within 10 days of the expiration of the period of time to amend. (See Cal. Rules of Court rule 3.1320(j).) <u>Pending Motion</u> Cross-Defendants Stephanie Hendrickson, Luke Mensink, Josiah Hendrickson, and River Hendrickson demur to the entirety of Cross-Complainants' Cross-Complaint (Cross-Complaint) as well as to the 1st, 2nd, and 3rd Causes of Action of the Cross-Complaint. <u>Standard for Demurrer</u> A demurrer challenges only the legal sufficiency of the affected pleading, not the truth of the factual allegations in the pleading or the pleader's ability to prove those allegations. (<i>Cundiff v. GTE Cal., Inc.</i> (2002) 101 Cal.App.4th 1395, 1404-05.) For this reason, the court will not decide questions of fact on demurrer. (See <i>Berryman v. Merit Prop. Mgmt., Inc.</i> (2007) 152 Cal.App.4th 1544, 1556.) Instead, the court "treat[s] the demurrer as admitting all material facts properly pleaded, but not contentions, deductions or conclusions of fact

or law" (*Serrano v. Priest* (1971) 5 Cal.3d 584, 591, citation omitted; see *Blank v. Kirwan* (1985) 39 Cal.3d 311, 318).

Therefore, the court will not consider facts that have not been alleged in the complaint unless they may be reasonably inferred from the matters alleged or are proper subjects of judicial notice. (*Hall v. Great W. Bank* (1991) 231 Cal.App.3d 713, 718 fn.7.)

However, "where facts appearing in attached exhibits or judicially noticed documents contradict, or are inconsistent with, the complaint's allegations, we must rely on the facts in the exhibits and judicially noticed documents." (*Jimenez vs. Mrs. Gooch's Natural Foods Markets, Inc.* (2023) 95 Cal.App.5th 645, 653.)

Although courts should take a liberal view of inartfully drawn pleadings, (see Code Civ. Proc., § 452), it remains essential that a pleading set forth the actionable facts relied upon with sufficient precision to inform the responding party of the matters that the pleading party is alleging, and what remedies or relief is being sought, (see *Leek v. Cooper* (2011) 194 Cal.App.4th 399, 413).

Bare conclusions of law devoid of any facts are insufficient to withstand demurrer. (*Schmid v. City and County of San Francisco* (2021) 60 Cal.App.5th 470, 481; see Code Civ. Proc., § 425.10, subd. (a).)

1st Cause of Action (Breach of Contract/Lease Agreement) and 2nd Cause of Action (Recovery of Unpaid Rent)

"[T]he elements of a cause of action for breach of contract are (1) the existence of the contract, (2) plaintiff's performance or excuse for nonperformance, (3) defendant's breach, and (4) the resulting damages to the plaintiff." (*Oasis West Realty, LLC v. Goldman* (2011) 51 Cal.4th 811, 821.)

Cross-Defendants contend that the 1st and 2nd Causes of Action fail because the Cross-Complaint does not plead all the essential elements of a breach of contract and failure to pay rent claim.

In this case, the Cross-Complaint alleges the existence of a contract, which is attached as an exhibit. (See Cross-Compl., ¶¶ 34, 40, Exh. 1.)

In addition, the Cross-Complaint pleads that Cross-Defendants' breached the contract and failed to pay the rent. (See *id.*, ¶¶ 36, 42.)

Further, the Cross-Complaint asserts that Cross-Defendants' breach and failure to pay rent caused damages of at least \$11,000. (See *id.*, ¶¶ 38, 43.)

For most causes of action, including the 1st and 2nd Causes of Action here, the plaintiff need plead only ultimate facts, not evidentiary facts. (See *Ludgate Ins. Co. v. Lockheed Martin Corp.* (2000) 82 Cal.App.4th 592, 606 ["A cardinal rule of pleading is that only the ultimate facts need be alleged."].)

Thus, the 1st and 2nd Causes of Action adequately allege each element of the claim.

Cross-Defendants also argue that:

[T]he Cross-Complaint improperly lumps all Cross-Defendants together without alleging which specific individuals were parties to the lease or which Cross-Defendant engaged in which allegedly breaching conduct. Group pleading of this nature fails to provide fair notice and independently warrants dismissal or, at minimum, an order requiring clarification by amendment.

(Dem. to Cross-Compl. at p. 4:10-13.)

However, the court must assume the truth of all properly pleaded allegations of the Cross-Complaint.

Thus, if the Cross-Complaint alleges that “[o]n or about August 1, 2021, Cross-Complainants and Cross-Defendants entered into a residential Lease . . . ,” the court must assume, for purposes of this demurrer, that all Cross-Complainants and all Cross-Defendants were parties to the residential Lease. (Cross-Compl., ¶ 34.)

If Cross-Defendants wish to challenge that assertion, they must do so on a motion for summary judgment and/or summary adjudication, or at trial.

Further, Cross-Defendants cite to no cases for the proposition that the Cross-Complaint must provide more detail. If Cross-Defendants wish to have “clarification,” they can seek it in discovery.

Therefore, the court will overrule the demurrer to the 1st and 2nd Causes of Action.

3rd Cause of Action (Fraudulent Concealment of Property Damage)

“[T]he elements of an action for fraud and deceit based on a concealment are: (1) the defendant must have concealed or suppressed a material fact, (2) the defendant must have been under a duty to disclose the fact to the plaintiff, (3) the defendant must have intentionally concealed or suppressed the fact with the intent to defraud the plaintiff, (4) the plaintiff must have been unaware of the fact and would not have acted as he did if he had known of the concealed or suppressed fact, and (5) as a result of the concealment or suppression of the fact, the plaintiff must have sustained damage.” (*Boschma v. Home Loan Center, Inc.* (2011) 198 Cal.App.4th 230, 248.)

Specificity

“In California, fraud must be pled specifically” (*Lazar vs. Superior Court* (1996) 12 Cal.4th 631, 645; see also *Linear Technology Corp. v. Applied Materials, Inc.* (2007) 152 Cal.App.4th 115, 132 [“Fraud must be

	pleaded with specificity.”.) “Concealment is a species of fraud, and ‘[] must be pleaded with specificity.’” (<i>Blickman Turkus, LP v. MF Downtown Sunnyvale, LLC</i> (2008) 162 Cal.App.4th 858, 878, quoting <i>Linear Technology Corp. v. Applied Materials, Inc.</i>, <i>supra</i>, 152 Cal.App.4th at p. 132.) As the Court of Appeal has explained: This means: (1) general pleading of the legal conclusion of fraud is insufficient; and (2) every element of the cause of action for fraud must be alleged in full, factually and specifically, and the policy of liberal construction of pleading will not usually be invoked to sustain a pleading that is defective in any material respect. (<i>Wilhelm v. Pray, Price, Williams & Russell</i> (1986) 186 Cal.App.3d 1324, 1331.) However, the specificity requirement should be relaxed when the plaintiff alleges fraud by omission. (See <i>Alfaro v. Community Housing Improvement System & Planning Ass’n, Inc.</i> (2009) 171 Cal.App.4th 1356, 1384 [rule that allegations of fraud must include how, when, where, to whom, and by what means misrepresentations were made is intended to apply to affirmative misrepresentations and not nondisclosures].) As the Court of Appeal has pointed out: “How does one show ‘how’ and ‘by what means’ something didn’t happen, or ‘when’ it never happened, or ‘where’ it never happened?” (<i>Ibid.</i>) Here, the Cross-Complaint alleges that: During her tenancy, Cross-Defendant STEPHANIE HENDRICKSON habitually parked her car next to the wall adjacent to the driveway, and on at least two occasions her car struck the hose bibb and pipe at the outside wall located next to driveway, causing damage in the form of bending and twisting the copper pipe inside and causing water to leak out. (Cross-Compl, ¶ 11.) The Cross-Complaint goes on to plead that “Tenants/Cross-Defendants had a duty to inform Management or Owner of any problems, however Stephanie failed to do so in the two instances when she damaged the water pipe, concealing this from Owner and Property Manager, and surreptitiously hiring a friend to fix damage.” (<i>Id.</i>, ¶ 45.) The Cross-Complaint specifies an instance on July 11, 2023, where Cross-Complainants interviewed Cross-Defendant Stephanie Hendrickson about the mold, foul smells, or water leaks or intrusions and she “said everything was good” and “never informed Owner
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or Management of any health or respiratory problems, or that she damaged the outside pipe with her car causing water to leak out.” (*Id.*, ¶ 15.)

The Cross-Complaint also alleges another instance in November 2023 when “Property Manager phoned and sent an email to every tenant and none reported any plumbing leaks,” including Cross-Defendant Stephanie Hendrickson who “never mentioned that she damaged the outside pipe with her car causing a water leak.” (*Id.*, ¶ 16.)

The Cross-Complaint then asserts that Cross-Defendant Stephanie Hendrickson concealed the damaged pipe by “turn[ing] off the PVC shut-off valve for the irrigation line (and now the grass in the front yard is dead)” and “did not inform Owner or Property Manager of the situation.” (*Id.*, ¶ 18.)

The Cross-Complaint also explains that “Cross-Defendants intentionally concealed the water damages (leading to mold) to avoid responsibility.” (*Id.*, ¶ 46.)

Given the relaxed standards for pleading fraudulent concealment (as opposed to affirmative misrepresentation), the Cross-Complaint pleads the 3rd Cause of Action with sufficient specificity.

Civil Code Section 1941 and 1941.1

Cross-Defendants also contend that:

Civil Code sections 1941 and 1941.1 impose non-delegable duties on landlords to maintain residential rental property in a habitable condition. To the extent the Cross-Complaint seeks to impose liability on tenants for statutory habitability violations, alleged mold conditions, or remediation obligations arising from water intrusion, such claims fail as a matter of law.

(Dem. to Cross-Compl. at p 3:20-23.)

However, it is clear from the allegations of the 3rd Cause of Action that it is not seeking to impose liability on Cross-Defendants for damages relating to the landlord’s failure to maintain residential property.

Rather, it seeks to impose liability on Cross-Defendants for their fraudulent concealment of damage to the residential property that Cross-Defendants caused themselves.

Thus, Sections 1941 and 1941.1 do not apply here.

Duplicative Claim

Cross-Defendants next argue that the 3rd Cause of Action is duplicative because the duty to disclose is alleged to arise from the lease agreement.

		Here, the Cross-Complaint alleges that “[u]nder the Lease, Tenants/Cross-Defendants had a duty to inform Management or Owner of any problems.” (Cross-Compl., ¶ 45.) “Duty ‘is an essential element’ of the tort of negligence.” (<i>Melton v. Boustred</i> (2010) 183 Cal.App.4th 521, 529, quoting <i>Potter v. Firestone Tire & Rubber Co.</i> (1993) 6 Cal.4th 965, 984.) “The existence and scope of duty are legal questions for the court,” (<i>Merrill v. Navegar, Inc.</i> (2001) 26 Cal.4th 467, 477), which the court makes on a case-by-case basis, (see <i>Isaacs v. Huntington Mem’l Hosp.</i> (1985) 38 Cal.3d 112, 124.) Here, by asserting the breach of a duty based on contract, Cross-Complainants are claiming a breach of contract and not negligence. The negligence is duplicative of the breach of contract claim in that regard. (Compare Cross-Compl., ¶ 36.b [alleging that “Cross-Defendants, and each of them, breached said Lease Agreement by . . . [f]ailing to inform Owner or Property Manager that Stephanie damaged the pipe twice with her car, causing water to leak leading to mold” with <i>id.</i>, ¶ 45 alleging that “[u]nder the Lease, Tenants/Cross-Defendants had a duty to inform Management or Owner of any problems, however Stephanie failed to do so in the two instances when she damaged the water pipe, concealing this from Owner and Property Manager, and surreptitiously hiring a friend to fix damage.”) Thus, the court will sustain the demurrer to the 3rd Cause of Action. <u>Uncertainty</u> “A demurrer for uncertainty is strictly construed, even where a complaint is in some respects uncertain, because ambiguities can be clarified under modern discovery procedures.” (<i>Khoury v. Maly’s of California, Inc.</i> (1993) 14 Cal.App.4th 612, 616.) Demurrers for uncertainty “are granted only if the pleading is so incomprehensible that a defendant cannot reasonably respond.” (<i>Lickiss v. Fin. Indus. Regulatory Auth.</i> (2012) 208 Cal.App.4th 1125, 1135.) “[A] demurrer for uncertainty will not be sustained where the facts claimed to be uncertain or ambiguous are presumptively within the knowledge of the demurring party.” (<i>Ching v. Dy Foon</i> (1956) 143 Cal.App.2d 129, 136.) “[U]nder our liberal pleading rules, where the complaint contains substantive factual allegations sufficiently apprising defendant of the issues it is being asked to meet, a demurrer for uncertainty should be overruled or plaintiff given leave to amend.” (<i>A.J. Fistes Corp. v. GDL Best Contractors, Inc.</i> (2019) 38 Cal.App.5th 677, 695.) In addition, a demurrer for uncertainty must identify by line and page number, the language that creates the uncertainty. (<i>Fenton v. Groveland Community Services Dist.</i> (1982) 135 Cal.App.3d 797, 809, disapproved
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	of on other grounds, <i>Katzberg v. Regents of University of California</i> (2002) 29 Cal.4th 300.) "Generally, the failure to specify the uncertain aspects of a complaint will defeat a demurrer based on the grounds of uncertainty." (<i>Fenton v. Groveland Community Services Dist.</i> (1982) 135 Cal.App.3d 797, 809, disapproved of on other grounds, <i>Katzberg v. Regents of University of California</i> (2002) 29 Cal.4th 300.) Cross-Defendants assert that the Cross-Complaint is uncertain because it fails to allege "the rent amount, time period, mitigation, or consistency with the admitted full return of the security deposit." (Dem. to Cross-Compl. at p. 4:15-16.) This argument is wholly without merit. Cross-Defendants fail to cite to any authority that requires the Cross-Complaint to contain such details. Cross-Defendants also do not explain how the lack of this information makes it impossible for them to respond to the Cross-Complaint. Cross-Defendants further fail to specify the page and line numbers which are uncertain. Accordingly, the court will overrule the demurrer on this basis. <u>Leave to Amend</u> "It is an abuse of the trial court's discretion to sustain a demurrer without leave to amend if there is a reasonable possibility the plaintiff can amend the complaint to allege any cause of action." (<i>Smith v. State Farm Mutual Automobile Ins. Co.</i> (2001) 93 Cal.App.4th 700, 711.) However, it is the plaintiff's "burden to establish how the complaint can be amended to state a valid cause of action." (<i>Sanowicz v. Bacal</i> (2015) 234 Cal.App.4th 1027, 1044.) In order to meet this burden, a plaintiff may submit a proposed amended complaint or enumerate facts and demonstrate how those facts establish a cause of action. (See <i>Cantu v. Resolution Trust Corp.</i> (1992) 4 Cal.App.4th 857, 890.) Nonetheless, "for an original complaint, regardless whether the plaintiff has requested leave to amend, it has long been the rule that a trial court's denial of leave to amend constitutes an abuse of discretion unless the complaint 'shows on its face that it is incapable of amendment.'" (<i>Eghetesad v. State Farm General Insurance. Co.</i> (2020) 51 Cal.App.5th 406, 411, quoting <i>King v. Mortimer</i> (1948) 83 Cal.App.2d 153, 158; see <i>Cabral v. Soares</i> (2007) 157 Cal.App.4th 1234, 1240 ["Only rarely should a demurrer to an initial complaint be sustained without leave to amend."].) As the Court of Appeal has explained: "Liberality in permitting amendment is the rule, if a fair opportunity to correct any defect has not
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	been given.” (<i>Angie M. v. Superior Court</i> (1995) 37 Cal.App.4th 1217, 1227.) Here, Cross-Complainants request leave to amend and the demurrer is asserted against the original Cross-Complaint, so that Cross-Complainants have not had a prior opportunity to amend. Therefore, the court will exercise its discretion and grant leave to amend. The parties are reminded that, when leave to amend is granted upon the sustaining of a demurrer, amendments are limited to the issues addressed in the court’s ruling and generally may not include amendments to causes of action not addressed in the ruling or the addition of new causes of action. (See <i>Community Water Coalition v. Santa Cruz County Local Agency Formation Com.</i> (2011) 200 Cal.App.4th 1317, 1329 [“It is the rule that when a trial court sustains a demurrer with leave to amend, the scope of the grant of leave is ordinarily a limited one. It gives the pleader an opportunity to cure the defects in the particular causes of action to which the demurrer was sustained, but that is all.”].) <u>Motion to Strike</u> Plaintiffs Stephanie Hendrickson’s, Luke Mensink’s, Josiah Hendrickson’s, and River Hendrickson’s Motion to Strike Defendants’ Affirmative Defenses. <u>Pending Motion</u> Cross-Defendants Stephanie Hendrickson, Luke Mensink, Josiah Hendrickson, and River Hendrickson move to strike the affirmative defenses asserted in Defendants The L3 Property Management’s and Barry J. Reieux’s Answer to Plaintiffs’ Complaint (Answer). <u>Standard for Motion to Strike</u> A party may move to strike out any irrelevant, false, or improper matter inserted in any pleading or strike out all or any part of any pleading not drawn or filed in conformity with the laws of this state, a court rule, or an order of the court. (Code Civ. Proc., § 436.) “Irrelevant” matters include: allegations not essential to the claim, allegations neither pertinent to nor supported by an otherwise sufficient claim, or a demand for judgment requesting relief not supported by the allegations of the complaint. (Code Civ. Proc., § 431.10, subd. (b).) A party may also request to strike legal conclusions. (Weil & Brown, Cal. Prac. Guide, Civil Proc. before Trial, ¶ 7:179 (2010).) Specifically, conclusory allegations that are not supported by factual allegations in
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the complaint may be stricken. (*Perkins v. Superior Court* (1981) 117 Cal.App.3d 1, 6.)

For example, prayers for relief that lack factual foundation may be stricken from a complaint. (See *Turman v. Turning Point of Central Calif., Inc.* (2010) 191 Cal.App.4th 53, 63 [trial court properly struck prayer for punitive damages where complaint failed to allege sufficient facts to show that defendant acted with malice, oppression, or fraud].)

The grounds for a motion to strike must appear on the face of the pleading or from matters which the court may judicially notice. (See Code Civ. Proc., § 437.)

However, pleadings are to be construed liberally with a view to substantial justice. (Code Civ. Proc., § 452; Weil & Brown, Cal. Prac. Guide, Civil Proc. before Trial, ¶ 7:197 (2010).)

"In passing on the correctness of a ruling on a motion to strike, judges read allegations of a pleading subject to a motion to strike as a whole, all parts in their context, and assume their truth. In ruling on a motion to strike, courts do not read allegations in isolation." (*Clauson v. Superior Court* (1998) 67 Cal.App.4th 1253, 1255, citations omitted.)

Affirmative Defenses

Here, Plaintiffs do not seek to strike any irrelevant, false, or improper matter contained in the Answer.

Instead, Plaintiffs argue that some of the affirmative defenses should be stricken because they consist solely of legal conclusions and fail to allege any facts.

However, while a cause of action that consists only of legal conclusions and is unsupported by the facts may be the subject a demurrer, Plaintiffs cite to no authority for the proposition that an affirmative defense must consist of more than legal conclusions or be supported by allegations of fact.

Plaintiffs also contend that some of the affirmative defenses are internally inconsistent and mutually exclusive.

This argument is without merit as it is well-established that a party may "plead in the alternative and make inconsistent allegations." (*Mendoza v. Continental Sales Co.* (2006) 140 Cal.App.4th 1395, 1402.)

Plaintiffs next assert that some of the affirmative defenses improperly attempt to shift statutory habitability obligations upon tenants.

However, Plaintiffs fail to explain how the affirmative defenses shift obligations upon tenants or why it would be appropriate to strike an affirmative defense in that circumstance.

		Finally, “[a] notice of motion to strike a portion of a pleading must quote in full the portions sought to be stricken except where the motion is to strike an entire paragraph, cause of action, count, or defense. Specifications in a notice must be numbered consecutively.” (Cal. Rules of Court, rule 3.1322.) Plaintiffs fail to specify in their notice or any other part of their motion papers the specific portions of the answer that Plaintiffs seek to strike. Therefore, the court will deny the motion to strike. Defendants and Cross-Complainants shall give notice of these rulings.
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